

**CHAPTER 49.**

An Act to enable the Secretary of State for War to delegate the function of executing instruments relating to the acquisition, management and disposal of property. A.D. 1938.
[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Any instrument in connection with the acquisition, management or disposal of any land or other property, being an instrument to which the Secretary of State for War is expressed to be a party, shall be deemed to be validly executed by him if it is executed on his behalf by an Under Secretary of State or any other person authorised in that behalf by the Secretary of State, and any such instrument purporting to have been executed as aforesaid on behalf of the Secretary of State shall, until the contrary is proved, be deemed to have been so executed on his behalf.

Execution of instruments on behalf of Secretary of State.

(2) The method provided by this section for the execution of such an instrument as aforesaid shall be in addition to any other method available by law for the execution of such an instrument on behalf of a Secretary of State, and this section shall not be construed as affecting the validity of any method by which other instruments may be executed on behalf of a Secretary of State.